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Case Number: 25STCV03226 Hearing Date: September 18, 2026 Dept: 510

No. 12 - Sara Iveth Bonilla

Hernandez, et al. v. American Honda Motor Company, Inc.

Plaintiffs' Motion to Compel Further Responses to Requests for Production

Plaintiffs Sara Iveth Bonilla Hernandez and Walter V. Reyes move to compel Defendant American Honda Motor Company, Inc. to provide further responses to requests for production nos. 7, 10, 16-24.

Further Responses

A requesting party may move to compel further responses if “[a] statement of compliance with the demand is incomplete,” “[a] representation of inability to comply is inadequate, incomplete, or evasive,” or “[a]n objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310(a).)

Defendant makes an incomplete statement of compliance in response to request no. 7. After objecting to this request, Defendant responds:

Subject to and without waiving these objections, the requested production will be allowed in part and all documents in the demanded category that are in the possession, custody, or control of AHM will be included in the production. Pursuant to Code of Civil Procedure section 2031.280, the production will include a copy of Sections 3 and 5 of its 2024-2025 Dealer Operations Manual directed to warranty repair, which contain information that is confidential, commercially sensitive, and/or proprietary, pursuant to entry of an appropriate

protective order.

Code of Civil Procedure

section 2031.220 provides, "A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production."

This response does not

clearly specify Defendant would produce "all" responsive documents in its possession, custody, or control. A statement of compliance in whole must use the word "all" because it states under oath not only that the responding party will produce some documents, but also that the responding party is not withholding any responsive documents. To the extent Defendant intended to make only partial statements of compliance or is withholding documents, the responses are evasive and do not identify any documents withheld subject to objections as required. (Code Civ. Proc., § 2031.240, subd. (b)(1).)

For remaining requests

nos. 10 and 16-24, Defendant provided a code-compliant inability to comply statement. For example, in response to request no. 10 seeking a Workshop Manual for Plaintiff's vehicle, Defendant objects and then responds, "Subject to and without waiving these objections, AHM is unable to comply with this request. Pursuant to a diligent search and reasonable inquiry, there is no 'Workshop Manual' specific to 2024 Honda CR-V Hybrid vehicles and no such document has ever existed."

"A representation of

inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party." (Code Civ. Proc., § 2031.230.) Defendant's inability to comply statements fulfill these requirements.

Plaintiffs argue that

Defendant's inability to comply statements are incompatible with the objections preceding them. The Court disagrees—a party can object to the materials sought while also stating inability to comply with the request.

Compel Compliance

Plaintiffs

also request the Court compel Defendant to produce documents responsive to their requests. The Court declines to do this. By its nature, a motion to compel compliance is inherently contrary to a motion to compel a further response based on an inadequate initial response. Plaintiffs make no effort to address this inconsistency.

Disposition

Plaintiffs Sara Iveth

Bonilla Hernandez and Walter V. Reyes's motion to compel further responses to requests for production is granted in part. Defendant is ordered to serve a further verified response to no. 7 within 21 days.